

# Ramesh Chandra Singh v. State of U.P.

Allahabad High Court · Division Bench · 11 July 2019 · Writ-C No. 21946 of 2019 · **Writ dismissed; billing objection relegated to Clause 6.5.**

## HEADNOTE

A writ challenging an electricity demand notice is not entertained where the petitioner has the Clause 6.5 objection remedy before the Executive Engineer, and still less where the petition confuses a tubewell demand with a later, independent domestic connection.

## FACTUAL SUMMARY

Ramesh Chandra Singh challenged a 20 April 2018 notice of the Executive Engineer, Dakshinanchal Vidyut Vitran Nigam Limited, Hathras, demanding Rs. 60,728 as electricity charges. He contended that his connection was installed only on 5 May 2015, yet the demand ran from 2006 when he had applied for sanction. The licensee showed two independent connections in his name: a tubewell supply, to which the impugned notice related, and a domestic connection installed on 5 May 2015.

## HOLDING-UNITS

### HOLDING-UNIT · UP-2005::6.5

billing objection before Executive Engineer

#### HOLDING

Where a consumer is aggrieved by a demand of electricity charges, objections are to be filed in accordance with Clause 6.5 of the U.P. Electricity Supply Code, 2005 before the Executive Engineer, who will consider and decide the matter in accordance with law; the writ petition is dismissed in view of that alternative remedy. ¶ 6-7

## PRINCIPLE TAGS

### billing-objection-to-executive-engineer-under-6.5

A writ challenging an electricity demand notice is not entertained where the petitioner has the Clause 6.5 objection remedy before the Executive Engineer, and still less where the petition confuses a tubewell demand with a later, independent domestic connection. ¶ 6-7

## NOT DECIDED — NEGATIVE AUTHORITY

### NOT DECIDED — CORRECTNESS OF THE RS. 60,728 TUBEWELL DEMAND RUNNING FROM 2006

Left to Clause 6.5 objections before the Executive Engineer. ¶ 6-7